

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

DOCKET NO. 25-02

OCEAN NETWORK EXPRESS PTE. LTD.; ORIENT OVERSEAS CONTAINER LINE LIMITED; OOCL (EUROPE) LIMITED; EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC AGREEMENT No.011982); EVERGREEN MARINE CORPORATION (TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.; EVERGREEN MARINE (SINGAPORE) PTE. LTD.; AND YANG MING MARINE TRANSPORT CORPORATION, *Respondents*.

Served: February 7, 2025

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON JOINT MOTION FOR EXTENSION OF TIME

On January 8, 2025, the Commission issued a Notice of Filing of Complaint and Assignment ("Notice") for this proceeding.

On January 23, 2025, Respondents Orient Overseas Container Line Limited, and OOCL (Europe) Limited (collectively, "OOCL"), filed a Motion to Sever and Motion for a More Definite Statement.

On February 1, 2025, Respondent Ocean Network Express PTE. Ltd ("ONE") and Complainant Nielsen & Bainbridge, LLC ("NBG") filed a Joint Motion for Extension of Time ("EOT Motion"). ONE's response to the Complaint was due on February 3, 2025. The joint motion sought to extend the time "within which ONE may file its responsive pleadings to February 17, 2025, and that NBG be allowed until February 13, 2025, to file any opposition it may have to [OOCL's and ONE's] motions to sever and for a more definitive statement...." The EOT Motion indicates that the other Respondents consent to the EOT Motion.

By email sent on February 3, 2025, the next business day, the undersigned informed the parties that ONE was granted until February 10, 2025, to file the motions and supporting arguments it wished to make, and NBG was granted until February 17, 2025, to respond to the motions filed by both OOCL and ONE. The email further stated that an Order summarizing the undersigned's decision would issue at a later date.

On February 3, 2025, Respondent ONE filed a Motion to Sever and Motion for a More Definitive Statement. Since ONE filed its response to the Complaint, the Joint Motion for Extension of Time as it relates to ONE's request to extend time to respond to the Complaint is **DENIED AS MOOT**. The Joint Motion for an Extension of Time for NBG to file a response to both OOCL's and ONE's motions is **GRANTED**, with the additional time as stated in the email. Accordingly, NBG's response to both motions is due on **February 17, 2025**. Further extensions are unlikely to be granted. If NBG wishes to file an amended complaint in response to the motions, a motion seeking to amend and a copy of the amended complaint should accompany the response.

The parties are reminded of the requirement that motions seeking an extension of time be filed at least seven days prior to the scheduled filing date. 46 C.F.R. § 502.102(a).



Linda S. Harris Crovella
Administrative Law Judge